

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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LAZARUS ELIKWU,

Plaintiff,

-against-

CITY OF NEW YORK; DETECTIVE
MATTHEW BILOTTI (SHIELD NO. 4031),
DETECTIVE JOSEPH FICHTER (SHIELD
NO. 121), DETECTIVE JAMES MALONEY
(SHIELD NO. 6492), OFFICER SCOTT
GIACONA (SHIELD NO. 25360), POLICE
OFFICER DANIEL BYRNE (SHIELD NO.
8037), JOHN and JANE DOE 1 through 10,
individually and in their official capacities, (the
names John and Jane Doe being fictitious, as the
true names are presently unknown),

Defendants.

First Amended Complaint

Jury Trial Demanded

11-CV-2167(SLT)(ALC)

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NATURE OF THE ACTION

1. This is an action to recover money damages arising out of the violation of plaintiff's rights under the Constitution.

JURISDICTION AND VENUE

2. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988, and the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.
3. The jurisdiction of this Court is predicated upon 28 U.S.C. §§ 1331, 1343 and 1367(a).

4. Venue is proper in this district pursuant to 28 U.S.C. §§ 1391 (b) and (c).

5. This Court has supplemental jurisdiction over the New York State claims pursuant to 28 U.S.C. § 1367.

JURY DEMAND

6. Plaintiff demands a trial by jury in this action.

PARTIES

7. Plaintiff Lazarus Elikwu, is a resident of the City and State of New York.

8. Defendant City of New York is a municipal corporation organized under the laws of the State of New York. It operates the NYPD, a department or agency of defendant City of New York responsible for the appointment, training, supervision, promotion and discipline of police officers and supervisory police officers, including the individually named defendants herein.

9. At all times relevant defendants, Detective Matthew Bilotti, Detective Josepg Fichter, Detective James Maloney, Officer Scott Giacana, Police Officer Daniel Byrne and John and Jane Doe 1 through 10 (the “officers”) were police officers, detectives or supervisors employed by the NYPD. Plaintiff does not know the real names and shield numbers of defendants John and Jane Doe 1 through 10.

10. At all times relevant herein, defendants John and Jane Doe 1 through 10 were acting as agents, servants and employees of defendant City of New York and the NYPD. Defendants John and Jane Doe 1 through 10 are sued in their individual and official capacities.

11. At all times relevant herein, all individual defendants were acting under color of state law.

STATEMENT OF FACTS

12. On October 21, 2009, plaintiff was lawfully present in the vicinity of 10512 Avenue J in Brooklyn, New York.

13. At about 9:20 p.m. plaintiff was talking to an associate of his when police officers pulled over to where they were standing.

14. The associate reached into his pocket and dropped a gun.

15. The officers then falsely arrested plaintiff and accused him of possessing the gun:

16. Plaintiff was taken to a precinct where he was held for about three hours.

17. He was then taken to Central Booking where he spent about 36 hours.

18. Plaintiff was arraigned and bail was set at \$5,000.

19. Plaintiff could not post bail and was sent to Rikers Island where he remained for five days.

20. After plaintiff was indicted, his bail was increased to \$25,000.

21. Plaintiff then spent another week in Rikers Island.

22. Plaintiff appeared in criminal court numerous times to face these criminal charges.

23. On December 13, 2010, Plaintiff was acquitted at trial of all charges.

24. Plaintiff suffered damage as a result of defendants' actions. Plaintiff was deprived of his liberty, assaulted, battered, suffered emotional distress, mental anguish, fear, anxiety, embarrassment, humiliation and damage to his reputation.

25. Within ninety days after the claim alleged in this Complaint arose, a written notice of claim was served upon defendants at the Comptroller's office at 1 Centre Street, New York, New York.

26. At least thirty days have elapsed since the service of the notice of claim, and adjustment or payment of the claim has been neglected or refused.

27. This action has been commenced within one year and ninety days after the happening of the event upon which the claims are based.

FIRST CLAIM
(42 U.S.C. § 1983)

28. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

29. Defendants, by their conduct toward plaintiff alleged herein, violated plaintiff's rights guaranteed by 42 U.S.C. § 1983, the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

SECOND CLAIM

(FALSE ARREST)

30. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

31. Defendants violated the Fourth Amendment because they arrested plaintiff without probable cause.

THIRD CLAIM

(FAILURE TO INTERVENE)

32. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

33. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

34. Accordingly, the defendants who failed to intervene violated the Fourth Amendment.

FOURTH CLAIM

(MALICIOUS PROSECUTION)

35. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

36. By their conduct, as described herein, and acting under color of state law, defendants are liable to plaintiff under 42 U.S.C. § 1983 for the violation of his constitutional right to be free from malicious prosecution under the Fourth and Fourteenth Amendments to the United States Constitution.

37. Defendants' unlawful actions were done willfully, knowingly, with malice and with the specific intent to deprive plaintiff of his constitutional rights. The prosecution by defendants of plaintiff constituted malicious prosecution in that there was no basis for the plaintiff's arrest, yet defendants continued with the prosecution, which was resolved in plaintiff's favor.

38. As a direct and proximate result of defendants' unlawful actions, plaintiffs have suffered, and will continue to suffer, damages, including physical, mental and emotional injury and pain, mental anguish, suffering, humiliation, embarrassment and loss of reputation.

FIFTH CLAIM

(MONELL)

39. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

40. This is not an isolated incident. The City of New York (the “City”), through policies, practices and customs, directly caused the constitutional violations suffered by plaintiff.

41. The City, through its police department, has had and still has hiring practices that it knows will lead to the hiring of police officers lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

42. The City, through its police department, has a *de facto* quota policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

43. The City, at all relevant times, was aware that these individual defendants routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

44. The City, at all relevant times, was aware that these individual defendants are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

SIXTH CLAIM

(STATE LAW MALICIOUS PROSECUTION)

45. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

46. By their conduct, as described herein, defendants are liable to plaintiff for having committed malicious prosecution under the laws of the State of New York.

47. Defendants maliciously commenced criminal proceeding against plaintiff, charging him with resisting arrest, menacing and disorderly conduct. Defendants falsely and without probable cause charged plaintiff with violations of the laws of the State of New York.

48. The commencement and continuation of the criminal proceedings against plaintiff was malicious and without probable cause.

49. All charges were terminated in plaintiff's favor.

50. Defendants, their officers, agents, servants and employees were responsible for the malicious prosecution of plaintiff. Defendant City of New

York, as an employer of the individual defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

51. As a direct and proximate result of the misconduct and abuse of authority stated above, plaintiff sustained the damages alleged herein.

PRAYER FOR RELIEF

WHEREFORE, plaintiff respectfully requests judgment against defendants as follows:

- (a) Compensatory damages against all defendants, jointly and severally;
- (b) Punitive damages against the individual defendants, jointly and severally;
- (c) Reasonable attorneys' fees and costs pursuant to 28 U.S.C. § 1988; and
- (d) Such other and further relief as this Court deems just and proper.

DATED: September 19, 2011

New York, New York



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